

EMERGENCY PROVISIONS

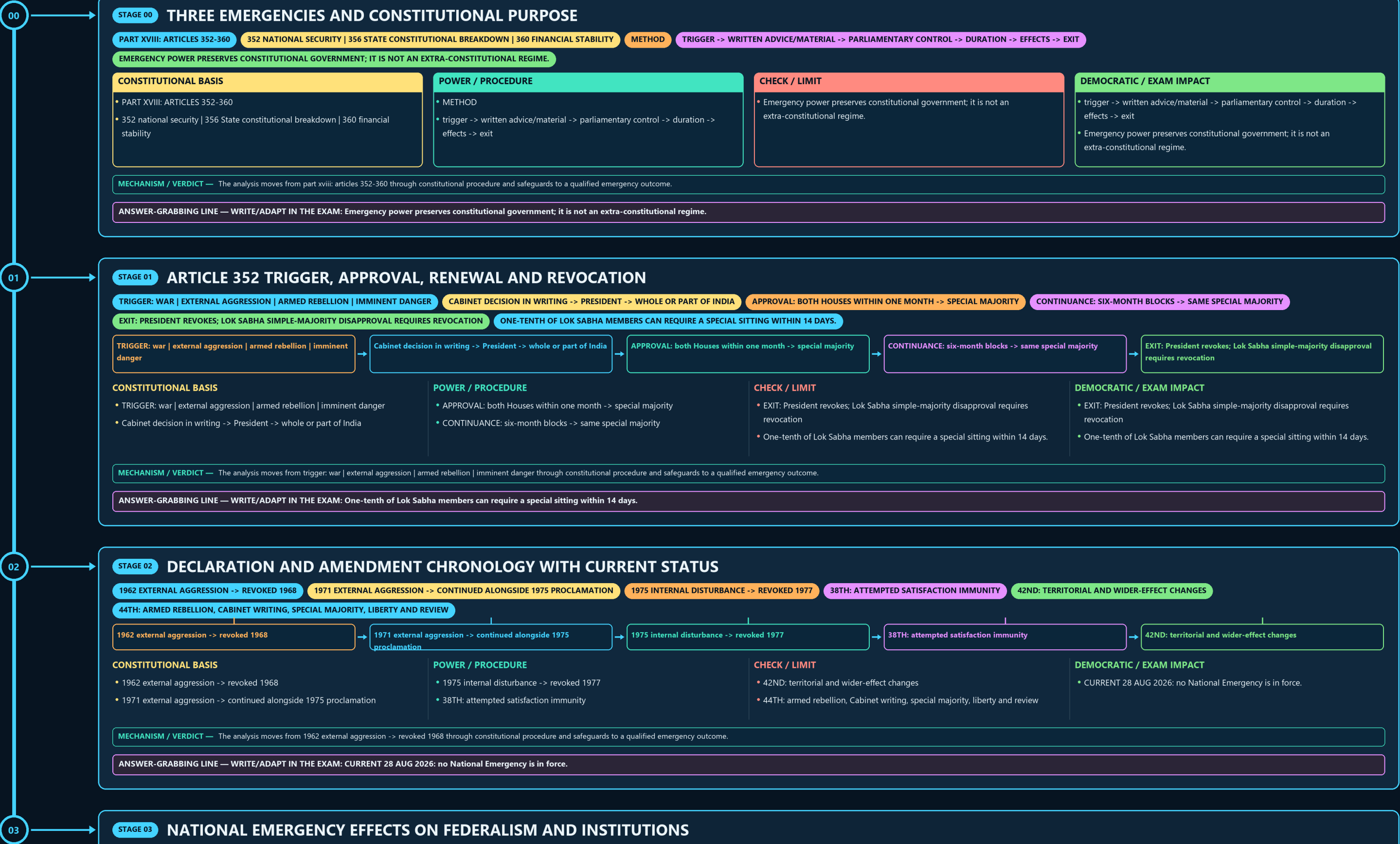
THREE EMERGENCIES → ARTICLE 352 PROCEDURE → AMENDMENT HISTORY → FEDERAL EFFECTS → RIGHTS FIREWALL → ARTICLE 356 CASES → ARTICLE 360 → PYQS → ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

STAGE 03

NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS

ARTICLE 353: UNION DIRECTIONS EXPAND; PARLIAMENT GAINS STATE-FIELD COMPETENCEARTICLE 250 LAWS -> SIX-MONTH TAIL AFTER EMERGENCYARTICLE 354 -> TEMPORARY REVENUE-DISTRIBUTION ORDER WITH FINANCIAL-YEAR LIMIT

LOK SABHA / ASSEMBLY TERMS -> PARLIAMENT MAY EXTEND ONE YEAR AT A TIMELIMITSTATES, LEGISLATURES AND HIGH COURTS CONTINUE: TEMPORARY UNION WEIGHTING, NOT ABOLITION.

CONSTITUTIONAL BASIS

- 1962 external aggression -> revoked 1968
- 1971 external aggression -> continued alongside 1975 proclamation

POWER / PROCEDURE

- 1975 internal disturbance -> revoked 1977
- 38TH: attempted satisfaction immunity

CHECK / LIMIT

- 42ND: territorial and wider-effect changes
- 44TH: armed rebellion, Cabinet writing, special majority, liberty and review

DEMOCRATIC / EXAM IMPACT

- CURRENT 28 AUG 2026: no National Emergency is in force.

MECHANISM / VERDICT

The analysis moves from 1962 external aggression -> revoked 1968 through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE

WRITE/ADAPT IN THE EXAM: CURRENT 28 AUG 2026: no National Emergency is in force.

04

STAGE 04

ARTICLES 358 AND 359 RIGHTS FIREWALL

ARTICLE 358AUTOMATIC | ARTICLE 19 ONLY | WAR/EXTERNAL AGGRESSION | EMERGENCY-RELATED RECITAL/ACTIONARTICLE 359PRESIDENTIAL ORDER | NAMED RIGHTS' COURT-ENFORCEMENT ROUTE | STATED AREA/PERIODPERMANENT FIREWALL

ARTICLES 20 AND 21 REMAIN ENFORCEABLE; UNRELATED ILLEGALITY GETS NO EMERGENCY SHIELD.

CONSTITUTIONAL BASIS

- ARTICLE 358
- automatic | Article 19 only | war/external aggression | emergency-related recital/action

POWER / PROCEDURE

- ARTICLE 359
- presidential order | named rights' court-enforcement route | stated area/period

CHECK / LIMIT

- PERMANENT FIREWALL
- Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

DEMOCRATIC / EXAM IMPACT

- PERMANENT FIREWALL
- Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

MECHANISM / VERDICT

The analysis moves from article 358 through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE

WRITE/ADAPT IN THE EXAM: Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

05

STAGE 05

ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976) MAJORITYDENIED HABEAS ENFORCEMENT ROUTE DURING THE OPERATIVE ARTICLE 359 ORDERJUSTICE H.R. KHANNA -> LIBERTY IS NOT EXECUTIVE GRACE44TH AMENDMENT -> ARTICLES 20 AND 21 EXCLUDED FROM ARTICLE 359

K.S. PUTTASWAMY (2017) -> ADM JABALPUR (1976) MAJORITY WRONGLY DECIDED AND OVERRULEDHISTORICAL WARNING, NOT CURRENT LAW.

ADM JABALPUR (1976) MAJORITY

denied habeas enforcement route during the operative Article 359 order

JUSTICE H.R. KHANNA -> liberty is not executive grace

44TH AMENDMENT -> Articles 20 and 21 excluded from Article 359

K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled

CONSTITUTIONAL BASIS

- ADM JABALPUR (1976) MAJORITY
- denied habeas enforcement route during the operative Article 359 order

POWER / PROCEDURE

- JUSTICE H.R. KHANNA -> liberty is not executive grace
- 44TH AMENDMENT -> Articles 20 and 21 excluded from Article 359

CHECK / LIMIT

- K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled
- The ADM Jabalpur (1976) majority is a historical warning, not current law.

DEMOCRATIC / EXAM IMPACT

- K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled
- The ADM Jabalpur (1976) majority is a historical warning, not current law.

MECHANISM / VERDICT

The analysis moves from ADM Jabalpur (1976) majority through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE

WRITE/ADAPT IN THE EXAM: The ADM Jabalpur (1976) majority is a historical warning, not current law.

06

STAGE 06

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

ARTICLE 356: GOVERNOR REPORT OR OTHERWISE -> OBJECTIVE MATERIAL -> PROCLAMATIONAPPROVAL: TWO MONTHS, SIMPLE MAJORITY | RENEWAL: SIX MONTHS | MAXIMUM: THREE YEARSBEYOND ONE YEAR: QUALIFYING ARTICLE 352 EMERGENCY + ECI CERTIFICATION

ARTICLE 357: PARLIAMENT MAY CONFER AND PERMIT DELEGATION OF STATE LEGISLATIVE POWEREXECUTIVE ASSUMED; ASSEMBLY SUSPENDED/DISSOLVED; HIGH COURT AND FUNDAMENTAL RIGHTS CONTINUEARTICLE 365 MAY SUPPLY MATERIAL, NEVER AN AUTOMATIC TRIGGER.

ARTICLE 356: Governor report or otherwise -> objective material

APPROVAL: two months, simple majority | renewal: six months |

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI

ARTICLE 357: Parliament may confer and permit delegation of

Executive assumed; Assembly suspended/dissolved; High Court

06

MECHANISM / VERDICT — The analysis moves from ADM Jabalpur (1976) majority through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The ADM Jabalpur (1976) majority is a historical warning, not current law.

STAGE 06

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

ARTICLE 356: GOVERNOR REPORT OR OTHERWISE -> OBJECTIVE MATERIAL -> PROCLAMATION

APPROVAL: TWO MONTHS, SIMPLE MAJORITY | RENEWAL: SIX MONTHS | MAXIMUM: THREE YEARS

BEYOND ONE YEAR: QUALIFYING ARTICLE 352 EMERGENCY + ECI CERTIFICATION

ARTICLE 357: PARLIAMENT MAY CONFER AND PERMIT DELEGATION OF STATE LEGISLATIVE POWER

EXECUTIVE ASSUMED; ASSEMBLY SUSPENDED/DISSOLVED; HIGH COURT AND FUNDAMENTAL RIGHTS CONTINUE

ARTICLE 365 MAY SUPPLY MATERIAL, NEVER AN AUTOMATIC TRIGGER.

ARTICLE 356: Governor report or otherwise -> objective material -> proclamation

APPROVAL: two months, simple majority | renewal: six months | maximum: three years

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

ARTICLE 357: Parliament may confer and permit delegation of State legislative power

Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

CONSTITUTIONAL BASIS

ARTICLE 356: Governor report or otherwise -> objective material -> proclamation

APPROVAL: two months, simple majority | renewal: six months | maximum: three years

POWER / PROCEDURE

BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

ARTICLE 357: Parliament may confer and permit delegation of State legislative power

CHECK / LIMIT

Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

Article 365 may supply material, never an automatic trigger.

DEMOCRATIC / EXAM IMPACT

Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

Article 365 may supply material, never an automatic trigger.

MECHANISM / VERDICT — The analysis moves from article 356: governor report or otherwise -> objective material -> proclamation through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 365 may supply material, never an automatic trigger.

07

STAGE 07

S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE 356 CONTROL

S.R. BOMMAI (1994)

REVIEW | RELEVANT MATERIAL | FLOOR TEST | DISSOLUTION AFTER APPROVAL | RESTORATION | FEDERALISM

RAMESHWAR PRASAD (2006)

BIHAR DISSOLUTION INVALID; ASSEMBLY NOT RESTORED BECAUSE ELECTION PROCESS HAD ADVANCED

WHY USE DECLINED

COURTS + COALITIONS + REGIONAL PARTIES + SARKARIA/PUNCHHI NORMS

CONSTITUTIONAL BASIS

S.R. BOMMAI (1994)

review | relevant material | floor test | dissolution after approval | restoration | federalism

POWER / PROCEDURE

RAMESHWAR PRASAD (2006)

Bihar dissolution invalid; Assembly not restored because election process had advanced

CHECK / LIMIT

WHY USE DECLINED

courts + coalitions + regional parties + Sarkaria/Punchhi norms

DEMOCRATIC / EXAM IMPACT

CURRENT: Manipur President's Rule 13 Feb 2025 -> revoked 4 Feb 2026.

MECHANISM / VERDICT — The analysis moves from S.R. Bommai (1994) through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: Manipur President's Rule 13 Feb 2025 -> revoked 4 Feb 2026.

08

STAGE 08

ARTICLE 360 FINANCIAL EMERGENCY

TRIGGER: FINANCIAL STABILITY OR CREDIT OF INDIA OR ANY PART THREATENED

APPROVAL: BOTH HOUSES WITHIN TWO MONTHS BY SIMPLE MAJORITY

DURATION: NO PERIODIC RENEWAL; PRESIDENT MAY REVOKE

DIRECTIONS: FINANCIAL PROPRIETY | SALARY REDUCTIONS | STATE MONEY/FINANCIAL BILLS RESERVED

UNION SALARY DIRECTION CAN INCLUDE SUPREME COURT AND HIGH COURT JUDGES

STATUS: NEVER PROCLAIMED; 1991 WAS MANAGED WITHOUT ARTICLE 360.

TRIGGER: financial stability or credit of India or any part threatened

APPROVAL: both Houses within two months by simple majority

DURATION: no periodic renewal; President may revoke

DIRECTIONS: financial propriety | salary reductions | State Money/financial Bills reserved

Union salary direction can include Supreme Court and High Court judges

CONSTITUTIONAL BASIS

TRIGGER: financial stability or credit of India or any part threatened

APPROVAL: both Houses within two months by simple majority

POWER / PROCEDURE

DURATION: no periodic renewal; President may revoke

DIRECTIONS: financial propriety | salary reductions | State Money/financial Bills reserved

CHECK / LIMIT

Union salary direction can include Supreme Court and High Court judges

STATUS: never proclaimed; 1991 was managed without Article 360.

DEMOCRATIC / EXAM IMPACT

Union salary direction can include Supreme Court and High Court judges

STATUS: never proclaimed; 1991 was managed without Article 360.

MECHANISM / VERDICT — The analysis moves from trigger: financial stability or credit of india or any part threatened through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS: never proclaimed; 1991 was managed without Article 360.

09

STAGE 09

THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

352: SPECIAL MAJORITY | SIX-MONTH RENEWAL | NATIONAL/FEDERAL/RIGHTS EFFECTS

356: SIMPLE MAJORITY | SIX-MONTH RENEWAL | THREE-YEAR MAXIMUM | STATE MACHINERY

360: SIMPLE MAJORITY | NO RENEWAL CYCLE | FINANCIAL DIRECTIONS

ESCALATION LADDER

WARNING -> CONSULTATION -> FLOOR TEST/COURT -> TARGETED ORDINARY LAW -> EMERGENCY

SARKARIA AND PUNCHHI RECOMMENDATIONS GUIDE RESTRAINT BUT ARE NOT BINDING LAW.

CONSTITUTIONAL BASIS

POWER / PROCEDURE

CHECK / LIMIT

DEMOCRATIC / EXAM IMPACT

EMERGENCY PROVISIONS • TILE 3/4 • same master rows 5323-8557 of 11218 • continues below

MECHANISM / VERDICT — The analysis moves from trigger: financial stability or credit of india or any part threatened through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS: never proclaimed; 1991 was managed without Article 360.

09

STAGE 09

THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

352: SPECIAL MAJORITY | SIX-MONTH RENEWAL | NATIONAL/FEDERAL/RIGHTS EFFECTS

356: SIMPLE MAJORITY | SIX-MONTH RENEWAL | THREE-YEAR MAXIMUM | STATE MACHINERY

360: SIMPLE MAJORITY | NO RENEWAL CYCLE | FINANCIAL DIRECTIONS

ESCALATION LADDER

WARNING -> CONSULTATION -> FLOOR TEST/COURT -> TARGETED ORDINARY LAW -> EMERGENCY

SARKARIA AND PUNCHHI RECOMMENDATIONS GUIDE RESTRAINT BUT ARE NOT BINDING LAW.

CONSTITUTIONAL BASIS

- 352: special majority | six-month renewal | national/federal/rights effects
- 356: simple majority | six-month renewal | three-year maximum | State machinery

POWER / PROCEDURE

- 360: simple majority | no renewal cycle | financial directions
- ESCALATION LADDER

CHECK / LIMIT

- warning -> consultation -> floor test/court -> targeted ordinary law -> Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

DEMOCRATIC / EXAM IMPACT

- warning -> consultation -> floor test/court -> targeted ordinary law -> Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

MECHANISM / VERDICT — The analysis moves from 352: special majority | six-month renewal | national/federal/rights effects through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Sarkaria and Punchhi recommendations guide restraint but are not binding law.

10

STAGE 10

SIX PYQS AND PRELIMS FIREWALLS

PYQ ROUTES

2018 FINANCIAL EMERGENCY + ARTICLE 356 CONSEQUENCES

2020 CENTRALISING LEGISLATION | 2023 ARTICLE 355/DETENTION/POTA + ARTICLE 356 DECLINE

2024 CONSTITUTION-PART IDENTIFICATION

FIREWALLS

ARMED REBELLION != INTERNAL DISTURBANCE | 358 != 359 | 20/21 PROTECTED

CONSTITUTIONAL BASIS

- PYQ ROUTES
- 2018 Financial Emergency + Article 356 consequences

POWER / PROCEDURE

- 2020 centralising legislation | 2023 Article 355/detention/POTA + Article 356 decline
- 2024 Constitution-Part identification

CHECK / LIMIT

- FIREWALLS
- armed rebellion != internal disturbance | 358 != 359 | 20/21 protected

DEMOCRATIC / EXAM IMPACT

- 352 special majority | 356/360 simple | 360 never used | High Court not assumed.

MECHANISM / VERDICT — The analysis moves from pyq routes through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 352 special majority | 356/360 simple | 360 never used | High Court not assumed.

11

STAGE 11

MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT

10 MARKS: PROVISION -> TRIGGER -> PROCEDURE -> EFFECTS -> STATUS/VERDICT

15 MARKS: THESIS -> LEGAL FACTORS -> POLITICAL FACTORS -> CASE/COMMISSION -> VERDICT

20 MARKS: 352 + RIGHTS + 356 + 360 -> SAFEGUARDS -> LIMITS -> GRADED CONCLUSION

EVIDENCE CHAIN

CLAIM -> ARTICLE/AMENDMENT -> MECHANISM -> CASE/HISTORY -> QUALIFICATION

VERDICT: EMERGENCY IS LEGITIMATE TEMPORARY CONSTITUTIONAL SELF-DEFENCE ONLY WHEN REVIEWABLE

CONSTITUTIONAL BASIS

- 10 MARKS: provision -> trigger -> procedure -> effects -> status/verdict
- 15 MARKS: thesis -> legal factors -> political factors -> case/commission -> verdict

POWER / PROCEDURE

- 20 MARKS: 352 + rights + 356 + 360 -> safeguards -> limits -> graded conclusion
- EVIDENCE CHAIN

CHECK / LIMIT

- claim -> Article/amendment -> mechanism -> case/history -> qualification
- VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable

DEMOCRATIC / EXAM IMPACT

- and directed toward restoration of ordinary democratic government.

MECHANISM / VERDICT — The analysis moves from 10 marks: provision -> trigger -> procedure -> effects -> status/verdict through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: and directed toward restoration of ordinary democratic government.

E

EXTRA

OPTIONAL ENRICHMENT — NOT REQUIRED FOR A COMPETENT CORE ANSWER

OPTIONAL ONLY

CONSTITUENT ASSEMBLY

SAFETY VALVE

CORE ALREADY COMPLETE

CRITICISM

- Constitutional dictatorship and totalitarian-risk arguments.

DEFENCE

- Life-breath and safety-valve arguments.

OPTIONAL STATUS — This enrichment follows the complete Core and is unnecessary for a competent Core answer.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Use criticism only after stating the exact emergency mechanism and safeguards.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels

EMERGENCY PROVISIONS • TILE 4/4 • same master rows 7984-11218 of 11218 • end